

GZ: 2023-0.159.938 dated August 4, 2023 (Case Number: DSB-D213.1759)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), case numbers (and similar), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides in the context of the official examination procedure against N*** non-profit housing construction company m.b.H., FN 2*88*3*t, as follows:

1. The responsible party violates the GDPR by operating 30 video cameras at the location O***allee *8, 1*** Vienna, specifically the cameras numbered 1, 2, 3, 4, 5, 6, 7, 8, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 26, 28, 29, 30, 31, 32, 33, 34, and 38, whose recording areas capture general parts of the property, thereby processing personal data in violation of the principle of Art. 5 para. 1 lit. c GDPR (data minimization).

2. The responsible party is ordered to restrict the recording area of the video cameras numbered 6 and 17 within a period of two weeks, under threat of enforcement, so that only the pick-up stations of the logistics or postal company are recorded, but not the entire entrance area.

3. The responsible party is prohibited from processing data through the cameras numbered 1, 2, 3, 4, 5, 7, 8, 11, 12, 13, 14, 15, 16, 18, 19, 20, 21, 22, 23, 26, 28, 29, 30, 31, 32, 33, 34, and 38 with immediate effect under threat of enforcement.

Legal bases: Art. 4, Art. 5 para. 1 lit. c, Art. 6, Art. 12 para. 3, Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 58 para. 2 lit. d and f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1.

REASONING

A. Submissions of the Parties and Procedural History

1. By letter dated November 3, 2022, the Data Protection Authority was informed of the video surveillance system operated by the responsible party in the residential complex at the postal address < O***allee *8, 1*** Vienna > through an anonymous tip, which included several photographs of video cameras as an attachment.

2. The Data Protection Authority initiated a data protection review pursuant to Art. 57 para. 1 lit. h GDPR ("official examination procedure") against the responsible party regarding the video surveillance system by decision dated December 14, 2022.

3. The responsible party, after an extension of the deadline until January 17, 2023, summarized in its statement dated January 17, 2023, that there had been an increase in break-ins in the basement compartments in the residential complex in question. Initially, as a preventive measure, the cylinders and locking areas of the basement access doors were replaced or reinforced. The responsible party also installed video decoys and warning signs on the ground floor. However, during the summer months of 2020, there were again break-ins in the basement. In response, the responsible party revised the security concept for the residential complex, which now includes an electronic access system in conjunction with a video surveillance system. The residents were informed of this by a circular dated February 22, 2021, posted in the notice board on February 25, 2021. The property management also raised no objections in this regard. On June 1, 2021, the installation order was given to a professional. It should be noted that only general areas are monitored and that apartment entrance doors and the highly personal living areas of the residents are not affected.

The video surveillance system in question includes 38 active video cameras of the brand ***vision *4*5 and three camera decoys. The system serves to protect the property of the responsible party and the tenants/owners/residents. The responsible party has an interest in protecting itself preventively against theft, property damage, or other disturbances from outside or recording such for evidence preservation.

The camera system records on an event-driven basis using motion detection. The recordings are stored for a maximum of 72 hours. During this time, it is possible, upon prior instruction, to deactivate

the automatic deletion for a specific period in the event of a concrete incident (break-in). After evaluation, the data will then be deleted. The system consists of three PCs, with two used for recordings and one for playback/display of images. All recorders and also distributors are housed in rooms to which neither tenants nor outsiders have access. The PCs are also password protected and accessible only to a limited group of individuals. The data is also processed only locally, without being connected to the internet. Appropriate signage is placed at all access doors (main/secondary entrances, garage, stair access). These are uniform standardized warning signs (with QR code for data protection information).

In principle, only the entrance areas as well as bicycle/stroller/trash rooms are captured by the cameras. Sensitive areas (mailboxes, apartment entrances, basement compartments with... Residential use, public areas) would not be captured or have been rendered unrecognizable by irreversible blackouts of the camera image. Audio recordings do not take place. These have been disabled on the camera side. All administrative functions on the video cameras are protected by passwords. Access to live images and recordings is only possible through password entry on-site. Attached to the submission are as appendices:

- Screenshots of the recording area of the video cameras and their positions,
- Photos of the warning signs regarding video surveillance,
- The data sheet for the video cameras, and
- The operating manual for the video cameras.

4. In the supplementary statement dated February 7, 2023, the responsible party essentially stated that there is no consent from the affected individuals. This is not necessary in the present case, as the legitimate interest of the responsible party is predominant. There is also proper fulfillment of a contract, as tenants report break-ins. According to the property management contract, there is an obligation to take preventive measures for the benefit of the homeowners' association to avoid damage.

The property located at O***allee *8/L ***straße *7, 1*** Vienna, is currently 88.9% owned by the responsible party, which is in turn 99.97% owned by P***. Due to the repeated break-ins, the installation of video surveillance cameras is to be considered a measure of ordinary administration for which no majority resolution is necessary. Even if it were a measure of extraordinary administration, the consent of half of the owners would be evident due to the existing ownership structure.

Furthermore, no one has opposed the installation of the video surveillance system. The video surveillance was necessary according to § 28 WEG for the preservation of the property and for protection against damage.

The break-ins into the basement compartments have been recorded in the system of the responsible party, and the report is made by the tenant or owner to the police themselves. Additionally, pipe safes have been broken into, and the basement break-ins reported by tenants have been duly noted. There have also been incidents of non-residents being present in the garage and stairwell. Furthermore, there have been break-ins in the bicycle room, garage, and apartments.

Attached to the submission are as appendices:

- A letter dated February 22, 2021, to the tenants and owners of the residential complex,
- A report confirmation dated July 2, 2020 (crime scene: basement), and
- A letter to the tenants of the residential complex dated November 21, 2018, informing them that non-residents frequently stay in the garage and stairwell.

5. In the submission dated February 27, 2023, the responsible party stated that access to the basement compartments is through a gate, and the video camera numbered 29 records the access. The last break-in in the bicycle room occurred in December 2022 on two consecutive days. During the first break-in, a bicycle was stolen, and during the second break-in, the same perpetrator had already selected the bicycle but fled without the stolen goods upon discovering the video camera. Regarding various disturbances in the garage, it should be noted that a tenant drove into the garage with a smoking car, triggering the fire alarm. This person could be identified due to the video camera. In the past, bulky waste has often been left in the garbage room, and tiles have been knocked off the wall. A stroller has already been stolen from the stroller room. The pipe safes are located in the area of the garage entrance, and the video camera numbered 37 records the garage entrance. This means that the pipe safes are not inherently monitored by the video cameras; however, they are within the

camera's field of view. The recording area of the video camera numbered 17 (Rec 1 hr. 2 – Ground floor main entrance) captures the main entrance (L***straße *7) as well as eight boxes of the pickup station of a logistics or postal company. In the past, packages from the pickup stations have been stolen by non-residents. Every resident of the building and every non-resident is recorded when entering and leaving the residential building O***allee *8. In the basement, the elevator is captured by camera number 28. On the ground floor, camera number 30 is directed only at the main entrance. Access to the elevator or stairwell is not recorded by the cameras. There are no cameras installed in the stairwell or at the elevator on floors 1-6.

Attached to the submission are as appendices a picture of the garage entrance and the pipe safes.

B. Subject of the Complaint

Based on the report and the submissions, the subject of the proceedings is the question of whether the image processing operated by the responsible party in the form of 38 video cameras in the residential building located at O***allee *8, 1*** Vienna, is lawful.

C. Findings of Facts

1. The responsible party is the N*** non-profit housing company m.b.H., registered at the Commercial Court of Vienna under FN 2*88*3*t. It is the 88.9% majority owner of the property located at O***allee *8 and L***straße *7 in 1*** Vienna.

Evaluation of Evidence: The findings are based on the statement of the responsible party dated February 7, 2023, as well as the official land registry inquiry conducted on February 28, 2023, and the official company register research conducted on June 2, 2023.

2. The responsible party has installed an electronic access system in conjunction with a video surveillance system to improve the security concept for the property at O***allee *8 and L***straße *7 in 1*** Vienna. A professional was commissioned on June 11, 2021, for the installation of the aforementioned video surveillance system. The video surveillance system is intended to protect the property of the responsible party and the residents from theft and property damage. In the past, there have been break-ins in the cellar and bicycle storage areas, as well as in the garage, and safe deposit boxes have been broken into. Additionally, there have been increasing instances of unauthorized persons in the garage and stairwell. Residents were informed about the installation of the video surveillance system and the electronic access system via a circular letter dated February 22, 2021, posted in the display case on February 25, 2021. The video camera system is currently in operation. All installed video cameras are of the model ***vision *4*5. A total of 38 video cameras are in operation. Recording begins as soon as movement is detected in the recording area. The recordings are stored for a maximum of 72 hours, after which they are automatically deleted. No audio recordings are made.

Three PCs are in use; two for recordings and one for playback/display of the recordings. The PCs are password-protected, and only a limited number of individuals have access to the premises.

The cameras installed in the children's playroom are camera dummies.

Evaluation of Evidence: These findings are based on the comprehensible statements of the responsible party.

3. The video camera system is marked at all access doors with standardized signs.

The signs include a QR code for further data protection information.

The signs at the main entrance and at the garage entrance are as follows (blue highlights of the video camera markings were made officially):

[Note by the editor: The four images of the signs and their surroundings, presented as graphic files, cannot be pseudonymized with reasonable effort and have therefore been removed.]

Evaluation of Evidence: The findings are based on the statement of the responsible party as well as the submitted images, which clearly show the respective signs.

4. The positions and respective recording areas of the individual video cameras are as follows (formatting not 1:1):

4.1. The recording areas of the video cameras numbered 6, 7, 17, 30, 31, and 32 cover the entrance areas (main, side, and courtyard entrance):

The camera numbered 17 "Stg. 2 – EG Haupteingang" covers the main entrance area of Staircase 2 and also the eight boxes of the pickup station of a logistics or postal company.

The position and recording area of the camera numbered 17 are as follows:

[Note by the editor: The images of the position and recording area of the camera presented as graphic files have been removed.]

The camera numbered 6 "Stg. 1 – EG Eingang" covers the entrance area of Staircase 1 and also 3 boxes of the pickup station of a logistics or postal company. Residents must pass through the recording area of the camera numbered 6 "Stg. 1 – EG Eingang" when entering and exiting the residential building using the main entrance of Staircase 1.

The position and recording area of the camera numbered 6 are as follows:

[Note by the editor: The images of the position and recording area of the camera presented as graphic files have been removed.]

The camera numbered 7 "Rek 1, Stg. 1 – EG Stiege" covers one side entrance and also the stairwell area on the ground floor.

The position and recording area of the camera numbered 7 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the cameras, presented here as graphic files, have been removed.]

The video camera numbered 30 "Main Entrance" captures the entrance area.

The position and recording area of the camera numbered 30 is as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video camera numbered 31 "Side Entrance" captures the side entrance.

The position and recording area of the camera numbered 31 is as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video camera designated "Rec 2, Courtyard Access" numbered 32 captures the access to the courtyard.

The position and recording area of the camera numbered 32 is as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video camera designated "Stg. 2, Ground Floor Courtyard Access" numbered 22 captures the access to the courtyard.

The position and recording area of the camera numbered 22 is as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

Residents must pass through the recording area of one of the above video cameras when using an entrance while entering and exiting the residential building or when accessing the courtyard, which is captured by the video cameras numbered 22 and 32.

4.2. The recording areas of the video cameras numbered 1, 2, 12, 13, 14, 15, 16, 18, 19, 20, 28, and 29 capture the elevator and corridor areas:

The video cameras numbered 1 and 2 capture the elevator to Staircase 1 in the first and second basement levels. The positions and recording areas of camera number 1 and camera number 2 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video cameras numbered 12 and 13 capture the elevator to Staircase 2 in the first and second basement levels. The positions and recording areas of camera number 12 and camera number 13 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video cameras numbered 3, 4, and 5 each capture the corridor area on the first, third, and fifth floors leading to Staircase 1. The positions and recording areas of the video cameras numbered 3, 4,

and 5 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video cameras numbered 14, 15, and 16 each capture the corridor area on the first, third, and fifth floors of Staircase 2. The positions and recording areas of the video cameras numbered 14, 15, and 16 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video cameras numbered 18 and 19 capture the elevator area of Staircase 2 on the ground floor and the corridor in front of the elevator from Staircase 2. The positions and recording areas of the video cameras numbered 18 and 19 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video cameras numbered 20 and 21 capture the corridor in front of the elevator and the staircase area on the ground floor of Staircase 2. The positions and recording areas of the video cameras numbered 20 and 21 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video camera designated "1st Basement Elevator" numbered 28 captures the elevator in the basement. The position and recording area of the camera numbered 28 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

The video camera designated "1st Basement Lock at Technical Room" numbered 29 captures the lock in front of the technical room. The position and recording area of the camera numbered 29 are as follows:

[Note from the editor: The photographs depicting the position and recording area of the camera, presented here as graphic files, have been removed.]

4.3. The recording areas of the video cameras numbered 23, 24, 25, and 36 capture the bicycle room as well as the corridor area in front of it and the stroller room:

The video cameras designated 23 "Stg. 2 – EG in front of the bicycle room" and 24 "Stg. 2 – EG bicycle room" capture the parking area for bicycles and also the passage area in front of it. The video camera 25 "Stg. 2 – EG stroller room" captures the storage area for strollers. The positions and recording areas of the video cameras numbered 23, 24, and 25 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The video camera numbered 36 captures the bicycle room. The position and recording area of the camera numbered 36 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

4.4. The recording areas of the video cameras numbered 37, 38, 26, and 27 capture the grid gate at the garage and the garage entrance of Stiege 2:

The camera numbered 37 "Stg. 2 – Grid gate at garage" captures the grid gate of the garage, and the camera mounted in the garage entrance, numbered 38 "Stg. 2 – Garage entrance," captures the inner garage entrance from its recording area. The positions and recording areas of the two cameras numbered 37 and 38 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The video camera numbered 26 captures the grid gate or the inner entrance area to the garage. The position and recording area of the camera numbered 26 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The video camera numbered 27 "Rek 1 – Garage entrance" captures the inner garage entrance of Stiege 2. The position and recording area of the camera numbered 27 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

4.5. The recording areas of the video cameras numbered 8, 9, 10, 34, and 35:

The recording area of the video camera numbered 8 "Rek 1, Stg. 1 – EG in front of the waste room" captures the corridor area in front of the waste room. The position and recording area of the camera numbered 8 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The recording area of the video camera numbered 9 "Rek 1, Stg. 1 EG waste room 1" captures the first waste room on the ground floor, and the video camera numbered 10 "Rek 1 – EG waste room 2" records the second waste room on the ground floor. The positions and recording areas of the cameras numbered 9 and 10 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The recording area of the video camera numbered 34 "Rek 2, corridor in front of waste room" captures the corridor area in front of the waste room. The position and recording area of the camera numbered 34 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The recording area of the video camera numbered 35 "Rek 2, waste room" captures the waste room. The position and recording area of the camera numbered 35 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

4.6. The recording areas of the video cameras numbered 11 and 33, which record the areas in front of the two children's playrooms.

The recording area of the video camera numbered 11 "Stg. 1 – EG in front of children's playroom" captures the corridor on the ground floor in front of the children's playroom. The position and recording area of the camera numbered 11 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

The recording area of the video camera numbered 33 "Corridor in front of children's playroom" captures the corridor in front of the children's playroom. The position and recording area of the camera numbered 33 are as follows:

[Note by the editor: The graphical files depicting the position and recording area of the camera have been removed at this point.]

Assessment of Evidence: The findings regarding the position and recording areas of the respective cameras are based on the statement of the responsible party dated January 17, 2023, as well as the screenshots and images submitted therein, which show the positions and recording areas of the individual cameras.

5. The residents of the building have not granted consent for the video surveillance system, and there is also no resolution from the homeowners' association.

****Assessment of Evidence:**** These findings are based on the submissions of the responsible party.

****D. Legally, it follows that:****

****D.1. General****

****D.1.1.**** A responsible party is, according to Art. 4 No. 7 GDPR, the natural or legal person, authority, institution, or other entity that alone or jointly with others determines the purposes and means of processing personal data. The responsible party has not disputed its status as the data controller regarding the video surveillance system. There is no doubt that it is the data protection controller for the data processing that is still ongoing.

****D.1.2.**** As the responsible party states in its submission of February 7, 2023, the video surveillance in question is a measure of ordinary administration within the meaning of § 28 WEG and that due to the existing ownership conditions, "the consent of half based on the majority conditions and the special circumstances is evident," the following should be noted for the sake of completeness:

Video surveillance in common areas of a property is to be regarded as a measure of extraordinary administration within the meaning of § 29 para. 1 WEG, especially since it goes beyond the matters mentioned in § 28 WEG (cf. LGZ Graz December 15, 2006, 3 R 139/06t and Raffling, Kompein, and Brunnhuber in immo aktuell 2019, 131). Therefore, according to what has been said, a measure of extraordinary administration is present. It should be noted that even in the factual presence of a majority resolution, any of the outvoted parties could demand the judicial annulment of the majority resolution (cf. § 29 WEG).

****D.2. Regarding Video Surveillance****

The processing of personal data using image processing systems (video surveillance) for the preventive protection of persons or property in publicly accessible places, which are subject to the house rights of the responsible party, when legal violations (e.g., thefts or property damage) have already occurred or a particular risk potential exists at these locations (this is typically the case with banks, jewelers, kiosks, gas stations, data centers, parking garages), can fundamentally be based on the provision of Art. 6 para. 1 lit. f GDPR (cf. Löffler in Knyrim, Data Protection Law 4, Rz 15.13). The CJEU has already stated that the operation of such a video surveillance system for the protection of property can fundamentally represent a legitimate interest (cf. the judgment of the CJEU of December 11, 2019, C-708/18, Rz 42).

At the same time, the CJEU has stated that any data processing must meet the principles for processing set out in Art. 5 para. 1 GDPR regarding its permissibility (cf. regarding the comparable legal situation under Directive 95/46/EC the judgment of the CJEU of May 13, 2014, C-131/12, Rz 71 with references).

According to § 1 para. 1 DSG, everyone has the right to confidentiality of personal data concerning them, provided there is a legitimate interest in it. The existence of such an interest is excluded if data cannot be accessed due to their lack of traceability to the data subject.

Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal data is used in the vital interest of the data subject, the data subject has given their consent, there is a qualified legal basis for the use, or the use is justified by overriding legitimate interests of a third party. The GDPR and, in particular, the principles enshrined therein are to be used for the interpretation of the right to confidentiality (cf. the decision of February 15, 2021, GZ 2021-0.101.211 with references). As can be seen from the facts, the 38 video cameras in question capture the residents of the house and their visitors. On the one hand, there is real-time monitoring, and on the other hand, the video material is stored for 72 hours. This undoubtedly constitutes processing within the meaning of Art. 4 No. 2 GDPR, which falls within the material scope of the GDPR according to Art. 2 para. 1 leg. cit. This is because the capturing and transmission of real-time recordings to a monitor constitutes processing within the meaning of Art. 4 No. 2 GDPR, as does the storage.

As an interim result, it should therefore be noted that personal data is processed through the video camera system, which is subject to a confidentiality claim according to § 1 para. 1 DSG.

No personal data is processed by the three camera dummies. Consequently, there can be no violation of the DSG or the GDPR in this regard.

****D.2.1. Video Surveillance in the Individual Areas:****

The data processing by the responsible party through the video camera system in question is not in the vital interest of the residents, nor is there any consent from them. However, the permissible conditions apply - as stated by the responsible party in its submissions of January 17, 2023, February 7, 2023, and February 27, 2023.

brought forward - of Art. 6 para. 1 lit. b (fulfillment of a contract) and lit. f (legitimate interest of third parties, the respondent, as well as the other co-owners), each under the GDPR, is to be considered. Regarding the justification under Art. 6 para. 1 lit. b GDPR (fulfillment of a contract), it should be stated that there is a contract in the form of a lease agreement (rental agreement) between the controller and the residents of the building. The controller is contractually obliged to provide a rental object to the respective resident in exchange for the payment of rent, or a possible parking space for a car. However, a permanent video surveillance of all residents upon every entry and exit from the residential property cannot be derived from this and is also not necessary.

Art. 6 para. 1 lit. f GDPR (legitimate interest of third parties, the respondent, as well as the other co-owners) is fundamentally a permissible basis for processing. However, it must be examined whether the principles of data processing according to Art. 5 GDPR, in particular Art. 5 para. 1 lit. c GDPR "data minimization," have been adhered to in the processing of the personal data in question. These principles, when considered in isolation, constitute legally binding regulations that must be taken into account when assessing the legality of the data processing in question. As the Federal Administrative Court (BVwG) stated in its decision GZ W258 2216873-1 of October 30, 2019, the processing of personal data is permissible if it is carried out in compliance with the processing principles mentioned in Art. 5 GDPR and based on one of the permissible bases mentioned in Art. 6 GDPR.

Data minimization is the principle of reducing the processing of personal data to what is unavoidable. Only the principle of data minimization ensures a significant aspect of purpose limitation: it ensures that processing is actually limited by the defined purpose (Hötzendorfer / Tschohl / Kastelitz in DatKomm Art. 5 GDPR, Rz 28). The principle of data minimization, as stipulated in Art. 5 para. 1 lit. c GDPR for the processing of personal data, states that the data must be appropriately limited to what is necessary for the purposes of processing. According to this principle, personal data may only be processed if the purpose of processing cannot be achieved by other means in a reasonable manner (cf. statements above) (cf. Heberlein in Ehmann/Selmayr, DS-GVO2, K22 to Art. 5). The principle of data minimization sets three requirements to be measured against the processing purpose, namely appropriateness, relevance, and limitation to the necessary extent.

The controller stated in its submissions of January 17, 2023, and February 7, 2023, essentially that the security concept for the residential complex located at O***allee *8, 1*** Vienna, has been retrofitted to proactively counteract theft, property damage, and the presence of unauthorized persons. The Data Protection Authority acknowledges that there have been demonstrably unlawful occurrences in the residential complex in the recent past (cf. submitted attachments in the submission).

from February 7, 2023, by the responsible party), however, in the sense of the above-mentioned principle of data minimization according to Art. 5 para. 1 lit. c GDPR, it must be examined whether the implemented video camera system represents the least intrusive means for achieving the purpose. In this context, it should be taken into account that the present security concept of the responsible party includes two points, specifically the installation of video surveillance cameras and the installation of an electronic access system. These two measures have been implemented during the same period.

The data protection authority has categorized the recording areas of the individual cameras of the surveillance system:

a) The video cameras numbered 1, 2, 3, 4, 5, 6, 7, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 26, 28, 29, 30, 31, 32, and 38, whose recording areas cover the entrance, elevator, stair, and corridor areas. Due to the installed video cameras numbered 6 ("Stg. 1 - Ground Floor Entrance"), 7 ("Stg. 1 - Ground Floor Stair"), 17 ("Stg. 2 - Ground Floor Main Entrance"), 22 ("Stg. 2 - Ground Floor Courtyard Access"), 26 ("Stg. 2 - Gate at Garage"), 30 ("Main Entrance"), 31 ("Side Entrance"), 32 ("Courtyard Access"), and 38 ("Gate next to Garage Entrance"), residents, their visitors, and third parties (e.g., package and mail carriers) must pass through the respective recording areas of the above-mentioned video cameras when entering and exiting the residential building. Additionally, the recording areas of the video cameras numbered 1, 2, 3, 4, 5, 12, 13, 14, 15, 16, 18, 19, 20, 21, 28, 29, and 33 capture the elevator, stair, and corridor areas near the garage. Consequently, residents and their potential visitors are recorded each time they enter and exit the multi-family house and also partially within the building when using the elevator, stairs, and corridors. This is also stated by the responsible party in their statement dated February 27, 2023, under point 5 ("It is correct that every resident of the house is recorded when entering and exiting the residential building O***allee *8.")

The purpose of these video cameras is to deter unauthorized persons from entering the building, with the cameras designated 6 ("Stg. 1 - Ground Floor Entrance") and 17 ("Stg. 2 - Ground Floor Main Entrance") also serving the additional purpose of preventing thefts at the package stations.

Regarding the purpose of preventing unauthorized persons from entering the residential building, it should be noted that the simultaneous installation of the electronic access system already achieves this purpose. This prevents individuals without access rights from entering the residential complex.

From the perspective of the data protection authority, this electronic access system represents the least intrusive means to achieve the intended purpose - the prevention of access by unauthorized persons. The present level of intrusion due to the multitude of installed video cameras, which - as already noted - record residents and their visitors when entering and exiting the property, is therefore particularly intense.

The data protection authority therefore arrives at the conclusion, based on the considerations outlined above, that the data processing by the video cameras numbered 1, 2, 3, 4, 5, 7, 12, 13, 14, 15, 16, 18, 19, 20, 21, 22, 26, 28, 29, 30, 31, 32, and 38 does not comply with the principle of data minimization.

The cameras numbered 6 and 17 additionally pursue the purpose of preventing theft of packages or mail belonging to residents. By incorporating the principles of the GDPR, the responsible party can achieve this purpose as well if the recording areas of the video cameras numbered 6 and 17 are restricted to the pick-up stations of the logistics or postal company, and the area beyond that (entrance area) is not recorded. This represents, in light of Art. 5 para. 1 lit. c GDPR, a significantly milder means of achieving the purpose.

It is expressly noted by the data protection authority that an interest balancing according to Art. 6 para. 1 lit. f GDPR would lead to the same result, because it follows from the consistent case law of the CJEU (see judgment of June 17, 2021, C-597/19, para. 106) that a total of three conditions must be cumulatively met. In addition to the legitimate interest, the necessity of processing (appropriate, significant, and limited to what is necessary) and a preponderance of the interests of the responsible party must also be present.

Regarding the second condition of Art. 6 para. 1 lit. f GDPR, the necessity of processing personal data for the realization of the perceived legitimate interest, the Court has pointed out that exceptions and restrictions concerning the protection of personal data must be limited to what is absolutely necessary (see, for example, CJEU, May 4, 2017, C-13/16 or CJEU, November 9, 2010, C-92/09 and C-93/09). The Guidelines 3/2019 of the European Data Protection Board from January 29, 2020 ("Guidelines on the processing of personal data through video devices") stipulate under point 24 et seq. that video surveillance must be appropriate, significant, and limited to what is necessary for the purposes of processing ("data minimization," cf. Article 5 para. 1 lit. c GDPR). It must therefore be examined whether the same protective purpose can also be achieved by a milder means or whether the intended goal can be reached with a less intrusive data processing method. If suitable means for achieving the goal exist that are less intrusive than the means of video surveillance, these must be preferred to video surveillance (cf. ruling of the Administrative Court of Austria from September 12, 2016, Ro 2015/04/0011).

In this respect, the confidentiality interests of the affected individuals outweigh in an interest balancing due to the lack of necessity of data processing by the cameras numbered 1, 2, 3, 4, 5, 7, 12, 13, 14, 15, 16, 18, 19, 20, 21, 22, 26, 28, 29, 30, 31, 32, and 38, and with regard to the video cameras. theft or attempted theft typically not remain in the area for an extended period, and thus, capturing the area in front of the bicycle room with the camera numbered 23 is not necessary for the purpose of preventing theft. The purpose of monitoring the bicycle storage rooms and stroller storage rooms is to prevent theft and document any incidents that may occur.

In this context, it is sufficient to record the areas where the bicycles and strollers are stored with the cameras numbered 24, 25, and 36. There is no necessity to capture the hallway in front of the children's playrooms with the cameras numbered 11 and 33, as this would also involve recording individuals who are not involved in the use of these storage areas, which again violates the principle of data minimization (see Art. 5 para. 1 lit. c GDPR).

In summary, the responsible party has not adhered to the principle of applying the least intrusive means to achieve the intended purpose, as the purpose of preventing theft and documenting incidents can be achieved through the cameras located within the storage areas themselves. The necessity to record the areas outside these storage rooms is not present in this case and constitutes a breach of the principle of data minimization (see Art. 5 para. 1 lit. c GDPR).

****Entry into the premises recorded by the video cameras located in the respective room or these may serve as a deterrent.****

The video camera numbered 23, which only films the area in front of the bicycle room of staircase 2, is not required for this purpose and violates the principles of data processing according to Art. 5 GDPR, especially since the video cameras within these premises suffice for the intended purpose (prevention of theft and property damage).

With regard to the two video cameras numbered 11 and 33, which film the corridor areas in front of the children's playrooms (particularly the video camera numbered 11), reference is initially made to the above statements under point a, according to which the installation of the electronic access system represents a milder means to keep unauthorized persons away. Also concerning the two purposes of counteracting theft and property damage in the children's playrooms, it must be stated that the responsible party has not provided any objective evidence despite the necessary possibilities, but has merely claimed that only decoys have been installed in those premises. This also represents a milder means to prevent such dangers. Thus, there is a violation of Art. 5 para. 1 lit. c GDPR regarding the two video cameras numbered 11 and 33.

Regarding the recording areas of the video cameras numbered 9, 10, 24, 25, 35, and 36, which capture the areas in the waste, bicycle, and stroller storage rooms, it must be stated that these comply with the principles of data processing.

In the next step, it is to be examined whether the legitimate interests according to Art. 6 para. 1 lit. f GDPR of the responsible party regarding the video cameras numbered 9, 10, 24, 25, 35, and 36 outweigh.

According to the already cited established case law of the CJEU (see judgment of June 17, 2021, C-597/19, para. 106), three conditions are required for invoking Art. 6 para. 1 lit. f GDPR. Likewise, the guidelines 3/2019 of the European Data Protection Board from January 29, 2020 ("Guidelines on the processing of personal data through video devices") – based on European legal jurisprudence – provide the following criteria for the existence of a legitimate legal interest in the sense of Art. 6 para. 1 lit. f GDPR (see p. 10 ff. of the guidelines):

- i. Legitimate interests of a legal, economic, or immaterial nature;
 - ii. Necessity of processing (appropriate, significant, and limited to what is necessary)
 - iii. Balancing of interests (preponderance of the interests of the responsible party)
- i. regarding legitimate interest: The guidelines state under para. 19-20 that the purpose of protecting property from burglary, theft, or vandalism can represent a legitimate interest in video surveillance if a real threat situation exists. The legitimate interest must... actually and currently exist (i.e., they must not be fictitious or speculative) and there must be a real threat situation (e.g., serious incidents in the past may indicate this). The subject of the proceedings concerns thefts in the bicycle and stroller storage rooms (cf. statement of the responsible parties dated February 27, 2023). There have also been cases of property damage in the waste disposal rooms.
- ii. Regarding the necessity of processing: The guidelines state under point 24 et seq. that video surveillance must be appropriate to the purpose, significant, and limited to what is necessary for the purposes of processing ("data minimization," cf. Article 5(1)(c) GDPR). It must be examined whether the video surveillance is suitable to achieve the intended goal, is appropriate and necessary for the purpose, and whether the purpose cannot be achieved by less intrusive means that interfere less with the fundamental rights and freedoms of the affected person. It should be noted that the bicycle storage areas are located within the building, and yet (most recently in December 2022) there have repeatedly been thefts or attempted thefts of bicycles. Thus, it is clear that the protection of the property of the residents cannot be ensured by less intrusive means.
- iii. Regarding the balancing of interests: The guidelines state under point 30 et seq. that even if video surveillance is necessary to protect the legitimate interests of a data controller, it may only be conducted if the interests or fundamental rights and freedoms of the affected person do not outweigh the legitimate interests of the data controller or a third party (e.g., protection of property or physical integrity). The intensity of the interference is decisive, which may arise from the nature, scope, and number of the monitored areas. According to Recital 47, the reasonable expectations of the affected person must also be taken into account.

As already established, there have been bicycle thefts from the bicycle storage room in the past. On the one hand, surveillance in this case is also in the legitimate interest of those residents who have parked bicycles or strollers, so that the surveillance also serves to protect their property; on the other hand, the intensity of the interference is not comparable to surveillance in highly personal areas (such as in entrance, hallway, and elevator areas).

In summary, there is therefore a legitimate and - as a result of the balancing of interests - also justified interest in the protection of the property of the responsible parties with respect to the cameras numbered 9, 10, 24, 25, 35, and 36 in the waste disposal areas, bicycle, and stroller storage rooms.

c) Video cameras numbered 27 and 37 in the garage entrance area

The video cameras designated as number 27 (Staircase 2 garage entrance) and number 37 (Rek 2 garage entrance) capture the entrances to the garages. This allows for certain threshold, as the right to privacy is fundamental and must be respected in all circumstances.

D.4. Conclusion

In summary, the Data Protection Authority acknowledges the legitimate interests of the responsible party in ensuring the safety and security of the property and its residents. However, it also emphasizes the need to balance these interests against the fundamental rights of individuals to privacy. The use of video surveillance must be proportionate and necessary, and any measures taken should not infringe excessively on the privacy rights of residents and visitors. The authority recommends that the responsible party consider alternative, less intrusive means of ensuring security, while still adhering to the principles of data protection and privacy rights as outlined in applicable laws and regulations.

inner apartment door; it is a legitimate interest to grant that the entering or leaving of an apartment by the tenant, their cohabitants, or guests is not continuously monitored and recorded; it is primarily not about whether such monitoring is also recorded, as it already constitutes a serious infringement of privacy (secret sphere) if an affected person feels subjected to constant surveillance pressure due to the manner of installation and the external appearance (cf. OGH 17.12.2013, 5 Ob 69/13b). The above legal considerations are also reflected in the consistent case law of the Federal Administrative Court (most recently stated in the decision GZ W245 2246467-1/11E of April 21, 2023).

In summary, it is therefore reiterated that the interest of the residents in not having their personal data (or that of their visitors) processed through image recordings every time they leave and enter their apartments outweighs any - possibly also objectively legitimate - interest of the responsible parties in protecting their property. Thus, it follows that the processing of personal data by those cameras, whose recording areas must be passed by all individuals (house residents, visitors, package/post staff, etc.) when leaving and entering the residential property, is not covered by a legitimate interest of the responsible parties.

D.4. Regarding Decision Point 2 (Limitation of the Recording Area)

The Data Protection Authority has the remedial powers according to Art. 58 para. 2 lit. d GDPR, which allow it to instruct a responsible party to change or carry out processing operations in a specific manner and within a certain timeframe.

Based on the aforementioned provision, the responsible party was instructed to limit the recording areas of the video cameras numbered 6 and 17 in such a way that only the pickup stations of the logistics or postal company are captured, but not the entrance area.

The manner in which the responsible party implements Decision Point 2 is left to their discretion; both a "physical relocation" of the cameras and the establishment of a "blackout" or the installation of a privacy screen are possible. A period of two weeks appears appropriate for this. Therefore, a decision was to be made regarding Decision Point 2 accordingly.

D.5. Regarding Decision Point 3 (Prohibition of Continuing Image Processing)

As emerges from the above considerations under D.2 and D.3 of the legal assessment, the recordings by the video cameras numbered 1, 2, 3, 4, 5, 7, 8, 11, 12, 13, 14, 15, 16, 18, 19, 20, 21, 22, 23, 26, 28, 29, 30, 31, 32, 33, 34, and 38 of the video camera system in question are deemed unlawful, which is why the data processing for these was to be prohibited according to Art. 58 para. 2 lit. f GDPR.

Therefore, a decision was to be made regarding Decision Point 3 accordingly.